

25NNCV01328 25NNCV01328

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-31

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Case Number: 25NNCV01328 Hearing Date: July 31, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Mental Examination

Hearing Date: 7/31/26

CASE NO./NAME: 25NNCV01328 / Vazquez

v., Costco Wholesale Corp., et al.

Moving Party: Defendant Costco Wholesale
Corporation

Responding Party: Plaintiff Elizabeth Vazquez

Notice: Sufficient

Ruling: GRANT

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at

 or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action. Plaintiff

Elizabeth Vazquez (Plaintiff) alleges that on March 11, 2023, an employee of Costco Wholesale Corporation (Defendant), Anthony Vasquez, injured her at a Costco Warehouse in Monterey Park while she was sitting in an electric scooter. Employees Anthony Vasquez and Brian Rixner allegedly bumped into Plaintiff while loading a TV box into another customer's vehicle. On February 28, 2025, Plaintiff filed a Complaint against Defendant, Brian Rixner, Anthony Vasquez, and DOES 1-100.

On June 29, 2026, Defendant filed the instant motion to compel Plaintiff to submit to a mental examination. On July 17, 2026, Plaintiff filed an opposition. On July 24, 2026, Defendant filed a reply.

LEGAL

STANDARD

The Court has the authority to compel a mental examination of a party.

Code of Civil Procedure section 2032.310(a) provides that any party seeking to obtain discovery by a mental examination "shall obtain leave of court." (Code Civ. Proc., § 2032.310(a).) A motion for a mental examination "shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination". (Ibid.) The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Id. § 2032.310(b).)

Any grant of a motion for a mental examination must be based on "good cause." (Id. § 2032.320(a).) Good cause requires "that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence." (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.)

DISCUSSION

Meet and Confer

Defendant's

counsel declares to have met and conferred with Plaintiff's counsel on June 16 and 26, 2026 in an effort to arrange the mental examination at issue. (Damon Decl., ¶ 11.) Defendant's counsel declares that despite these efforts, no agreement was reached. (Ibid.) Plaintiff does not dispute that a meet and confer took place.

Accordingly,

the parties have satisfied the meet and confer requirement.

Relevant to the Action and Good Cause

Exists

Defendant

argues that Plaintiff has placed her mental condition in controversy by seeking recovery for emotional or psychological injury. (Mot., p. 5.) Defendant cites *Vinson v. Superior Court* which held that by asserting a causal link between mental condition and defendant's conduct, the plaintiff had put her mental condition in controversy. (Ibid.) Moreover, Defendant argues that good cause exists for the mental examination because it is directly relevant to disputed issues. (Mot., p. 6.) Defendant argues that Plaintiff has made allegations surrounding her mental state which Defendant has no way to evaluate other than a mental examination. (Ibid.)

In

opposition, Plaintiff argues that she has not placed her mental condition in controversy and seeks only emotional distress damages that naturally accompany physical injuries. (Opp., p. 7.) Further, Plaintiff argues that Defendant has not shown good cause for a mental examination and has not explained why a less intrusive discovery method would be inadequate. (Opp., pp. 5, 7.) Plaintiff maintains that a less intrusive method, interrogatories, offers sufficient insight into her psychological and mental conditions. (Opp., p. 5.)

In

reply, Defendant argues that Plaintiff has placed her mental condition squarely in controversy through several discovery responses. (Reply, p. 2.) Defendant argues that Plaintiff has described her injuries through multiple

interrogatories as ongoing “significant mental health symptoms” and described having anxiety, sleep disturbances, fear of being attacked, depression, irritability, and fear of public spaces. (Reply, p. 3, ¶¶ A-B.) Further, Defendant argues that Plaintiff purportedly incurred \$7,910.50 in psychological therapy charges and claims to need ongoing treatment psychotropic medication as a result of her mental distress. (Reply, pp. 3-4, ¶¶ C-F.) Accordingly, Defendant argues that Plaintiff has placed her mental condition in controversy and good cause exists for seeking mental examination. (Reply, pp. 6.)

Here,

Plaintiff has claimed that Defendant has caused her to suffer mental and emotional ailments. (Damon Decl., Exh. A-B.) The Court in *Vinson* has held that when these allegations are made, a plaintiff has put their mental condition in controversy. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 839.) Where a plaintiff alleges ongoing symptoms such as anxiety, sleeplessness, and fear, good cause exists for a mental examination to test the nature and extent of those very injuries. (*Vinson*, supra, 43 Cal.3d at 839–840.) Here, Plaintiff has made similar claims in interrogatory responses and depositions. (Damon Decl., Exh. A-B.) Further, in her Complaint, Plaintiff alleges that she has suffered “mental anguish” and “emotional distress” as a direct result of Defendant’s conduct. (Comp., ¶¶ 27-28.) Thus, Plaintiff has placed her mental state in controversy, and good cause exists for seeking mental examination.

Scope

Defendant purports that the single mental examination will be performed by Gregg M. Baringoldz, Ph.D., a licensed psychologist, in Long Beach, California, on July 31, 2026, at 9:00am. (Mot., p. 7.) Defendant purports that the examination will consist of a comprehensive personal history questionnaire, a clinical psychology interview, and standard psychological/diagnostic tests. (*Ibid.*) Further, Defendant purports that the examination will be limited to an inquiry into the mental and emotional conditions Plaintiff has placed in controversy. Thus, Defendant argues they provide the requisite specific information.

In opposition, Plaintiff argues that an eight-hour mental examination is unsafe, unduly burdensome, and unnecessary considering Plaintiff’s physical limitations and current mental conditions. (Opp., p. 6) Plaintiff argues that she is a wheelchair user with strict time restrained dieting and

medication plans and as a result is unable to accommodate such a long examination window. (Opp., pp. 5-6.) Moreover, Plaintiff argues that Defendant has not provided a rationale for each standard psychological/diagnostic test requested. (Opp., p. 6.) In reply, Defendant does not directly address Plaintiff's arguments regarding scope.

Here, a motion for a mental examination "shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.

(Code Civ. Proc., §

2032.310(a).) Defendant has identified the requisite information as well as the specific tests to be performed during the examination. (Damon Decl., ¶ 10.)

Thus, Defendant has sufficiently identified the limited scope of the mental examination specific to the issues in controversy.

Accordingly, the motion is GRANTED.

CONCLUSION

AND ORDER

Defendant Costco Wholesale Corporation's Motion
to Compel Plaintiff to Submit to Mental Examination is GRANTED.

MOVING PARTY is to give notice and file a proposed order consistent with this ruling.